



Weston College **Group**

**ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS,
ACADEMIC APPEALS AND MALPRACTICE POLICY AND
PROCEDURES**

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

CONTENTS

1	PURPOSE.....	3
2	SCOPE.....	3
3	POLICY STATEMENT	3
	Internal Verification	3
4	PROCEDURE	4
	Internal Verification	4
5	RESPONSIBILITIES	11
	Compliance, monitoring and review.....	11
	Reporting.....	11
	Records management.....	12
6	RELATED LEGISLATION AND DOCUMENTS.....	12
7	APPENDIX	12

Change Control

Version:	1.4
Date approved by CLB:	September 2022
Date approved by Corporation:	N/a
Name of policy holder:	Director of Quality, Learning Enhancement and Workforce Development
Date issued:	September 2022
Review date:	September 2025

Version	Type – New/Review	Date	History
1.0	New	Oct. 2019	N/a – new policy
1.1	Review	Dec. 2019	Minor mods only
1.2	Review	July 2020	Minor mods only
1.3	Review	May 2021	Reformatted to new template – no material changes
1.4	Review	Sept. 2022	Minor mods only

This policy applies to Weston College Group and all wholly owned subsidiary companies of the Weston College Corporation which include Prison Education, Forward Futures, SOMAX, Releasing New Potential, and Inspirational Events and Investments Ltd.

1 PURPOSE

- 1.1 To provide clear guidance on the College's internal verification, complaints, appeals and malpractice procedures in relation to all aspects of assessment within the FE provision of the College.
- 1.2 The internal verification process seeks to ensure that assessment practices and procedures meet national awarding organisation requirements and can be evidenced for internal and external quality assurance and audit obligations.
- 1.3 To set out the arrangements the College has for the investigation and resolution of complaints related to academic studies.
- 1.4 To support learners and staff to deal with disputes regarding assessment decisions appropriately with the aim of these being resolved effectively.
- 1.5 To provide the College protocol that must be followed should a student or staff member become involved in suspected or actual malpractice/maladministration. It is also for use by the College's staff to ensure they deal with all malpractice/maladministration investigations in a consistent manner.

2 SCOPE

- 2.1 This policy and procedure is applicable to all learners and staff within any FE provision (including Partnership activity) delivered for the Weston College Group.

3 POLICY STATEMENT

Internal Verification

- 3.1 Internal Quality Assurance (IQA) processes ensure that assessment is accurate, consistent, current, timely, valid and authentic.
- 3.2 IQA processes confirm that the assessment being delivered meets the national standards and those required by the relevant awarding body organisation.
- 3.3 IQA processes validate that the assessment being delivered is fit for purpose.
- 3.4 IQA processes ensure that assessment outcomes are prepared accurately for internal and external sampling activities.
- 3.5 IQA processes help to inform centre quality improvement.

Complaints

- 3.6 This section of the policy aims to ensure that learners, customers and stakeholders are aware of how to make a complaint regarding academic matters.
- 3.7 Weston College recognise that there is a difference between a concern and a complaint and many concerns can be resolved by simple clarification or the provision of information. It is anticipated that most concerns will be resolved at this informal stage.
- 3.8 These procedures apply when it has not been possible to resolve the matter informally.
- 3.9 Weston College requests that complainants do not discuss complaints publicly. This includes using social media platforms. Complaints will be dealt with confidentially by the College, it is expected that complainants also observe confidentiality.
- 3.10 To ensure a fair and comprehensive process, the College is not obligated to respond to anonymous complaints.
- 3.11 Weston College strives to meet the needs of learners in accordance with Government policy.
- 3.12 If there are any complaints submitted which would not be suitable to be reviewed in this policy, then they would be passed onto the Principalship and reviewed through the Weston College Group Complaints Policy and Procedure (non-academic).

Academic Appeals

- 3.13 An academic appeal is a request for a formal review of an academic assessment decision submitted to the student and is distinguished from other forms of appeal (non-academic) that a learner may wish to make. For all non-academic appeals, consult the Weston College Complaints Policy and Procedure (non-academic).

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

This section of the policy provides information to students and staff on academic (assessment) appeal procedures. It recognises that students seeking qualifications have a right to request a review of assessment decisions that affect them.

- 3.14 This section of the policy applies to all current learners registered for academic courses provided by Weston College, who want to appeal against an assessment decision by their assessor or the Board of Examiners.
- 3.15 A current learner includes those registered on programme, those on an interruption of studies, those on a temporary suspension from the College and those who have recently left the College and are within the time limit for making an appeal.

Malpractice

- 3.16 This section of the policy aims to identify and minimise the risk of malpractice by staff or learners.
- 3.17 To ensure that any alleged malpractice is responded to promptly and objectively.
- 3.18 To have a consistent approach to the recording of any investigation of malpractice to ensure openness and fairness.
- 3.19 To make staff and learners aware of the appropriate penalties and sanctions that will be imposed where accusations of incidents (or attempted incidents) of malpractice are proven.
- 3.20 To protect the integrity of Weston College and its qualifications.

4 PROCEDURE

Internal Verification

- 4.1 Each department must appoint a Lead IQA who will oversee these processes for their relevant awarding body organisation(s). In some cases, more than one Lead IQA may be required dependent on the size of the department and/or the awarding body requirements.
- 4.2 The Lead IQA will be the direct point of contact with the designated Quality Lead responsible for awarding body quality assurance.
- 4.3 Where possible, the Lead IQA should be the manager of the department. If for any reason this is not possible, an experienced member of staff must be chosen who is confident with delivering the awarding body assessment and understands the relevant IQA processes.
- 4.4 Where the Lead IQA is not the manager of the department, the manager must accept overall responsibility for any internal and external sampling activities that take place. They must undertake final checks prior to sample visits occurring or postal/digital samples being sent.
- 4.5 The Lead IQA's responsibilities are as follows:
 - Inform the College's Quality Lead responsible for awarding body quality assurance that they have now taken on this role.
 - Register as the point of contact with the awarding body and undertake any necessary training and/or assessment related to this role, if required.
 - Participate in standardisation activities with all staff members delivering on the qualification(s) before delivery commences. The first standardisation activity will take place prior to any teaching delivery for the new academic term. A further three standardisation activities should then take place over the year, one each term, as a minimum and these should be evidenced accordingly.
 - Ensure all assessment plans for the department are in place before delivery commences. It is the Lead IQA's responsibility to check that these have been updated accurately, that they are fit for purpose and are fully in line with the awarding body requirements. The Lead IQA, together with the Manager of the department, if different, are responsible for checking the latest specification requirements and for approving the unit/module combinations proposed on each assessment plan.
 - Ensure all internal verification plans are in place before delivery commences. The plan must include all assessors delivering on each qualification and include an opportunity where every learner's work will be internally verified during the year's internal verification cycle. Internal verification plans should also include more regular internal verification of existing staff members who have been identified as needing support with their approaches to assessment feedback, their grading decisions and/or their confidence with awarding body processes. The plan should also take into account new members of assessing staff, who will need to be internally verified more regularly during their first year in post.
 - The Lead IQA makes the final decision with regard to assessment decision queries and approves any resubmissions and retakes in accordance with the awarding body's assessment regulations.

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

- It is at the discretion of the Lead IQA on whether learner work is accepted late and they must ensure that any decision made falls within the awarding body stipulations.
- The Lead IQA is responsible for approving any resubmission requests. Resubmission policies differ between awarding bodies and it is important that any resubmissions approved are in line with these.
- The Lead IQA, together with the Manager of the department, if different, must ensure that all staff are briefed and trained in the current internal verification requirements for the qualifications being delivered. It is not the Lead IQA's responsibility to internally verify all assignment briefs and samples of work in the department but to coordinate and support this process. All assessing staff within the department must participate in the department's internal verification activity.
- The Lead IQA, together with the Manager of the department, if different, oversee the storage of assessment and verification evidence. All digital work should be stored on the Faculty Course Management File within SharePoint. Paper based assessment and verification evidence should be filed in a secure place. These files may need to be located for sampling purposes by the awarding body and are often requested during the next academic year. Ensure all files are clearly labelled and easily accessible for eighteen months after the qualification has been completed.
- Liaise with the relevant awarding body(s) and their external quality assurers in preparation for sampling activities. The Lead IQA, together with the Manager of the department, if different, oversee the organisation and the preparation of any internal and external sampling activity.
- Engage in regular contact with the Quality Lead responsible for awarding body quality assurance. Attend meetings arranged for Lead IQAs and ensure that the Quality Lead can access all relevant documentation.

Complaints

- 4.6 All formal written complaints related to assessment decisions from students or their parents / carers (if under 18 years or under 25 years if they have SEN needs) should be addressed to the Lead Internal Quality Assurer (Lead IQA) responsible for the qualification the complaint pertains to. All complaints should be stored within Teams Course Management files so they can be accessed centrally if required.
- 4.7 Receipt of a letter of complaint will be acknowledged within three working days.
- 4.8 In all cases a formal written response will usually take place within ten working days of receipt of a request, but there will be occasions when this could be extended due to College holidays, operational demands, staff availability or the need to secure additional information. If for any reason more time is required, this will be explained to the complainant.
- 4.9 If the complaint pertains to a member of staff, the complaint will be investigated by their Line Manager (Investigating Officer).
- 4.10 If the complaint pertains to a student, the complaint will be investigated by the manager of their department. This is unless it falls under the remit of the FE Anti-Bullying and Harassment Policy, Student Code of Conduct or the Student Behaviour and Disciplinary Policy.
- 4.11 If there are any complaints submitted which would not be suitable to be reviewed in this policy, then they would be passed onto the Principalship and reviewed through the Weston College Group Complaints Policy and Procedure (non-academic).
- 4.12 The Investigating Officer will contact the complainant and/or their parents / carers (if under 18 years or under 25 years if they have SEN needs) within five working days. The following will be recorded in writing:
 - The date of the meeting
 - Details of the complaint, which will also identify if it is an individual or group submission
 - The outcome sought
- 4.13 Within five working days of meeting the complainant, the Investigating Officer will meet the staff member(s) or learner(s) about whom the complaint has been made. The following will be recorded in writing:
 - The date of the meeting
 - Notes of the discussion around the complaint made
 - Identification of any issues that are justified
 - Agree and record which action should be taken to overcome the issues identified
- 4.14 The Investigating Officer will then write to all parties involved notifying them of the outcome of the complaint. A copy of these responses will also be sent to the Dean of Faculty.

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

- 4.15 With regard to any response times indicated in 4.11 and 4.12, please then refer back to 4.8.
- 4.16 Concerns or complaints should be brought to the attention of the College as soon as possible. In general, any matter raised more than six months after the event being complained of will not be considered. However, this may be extended in exceptional circumstances.

Appeals

- 4.17 Academic appeals may be lodged on the following grounds or conditions:

- The learner does not agree with the assessment decision(s) they have been awarded.
- That the stipulated assessment procedure according to the standards or requirement of the awarding body was not followed.
- Information is or was available which could have had a bearing on the assessment or mark, but which was not taken into account by the Board of Examiners / assessors or was unreasonably rejected.
- The grade attained was adversely affected by circumstances that were beyond the learner's control which they were unable to disclose prior to assessment.
- Bias or perception of bias.

- 4.18 All appeals against an internal assessment or grading decision will be subject to the following staged procedures. However, any appeals against an assessment or grading decision undertaken during a time of extraordinary circumstance, will be subject to an alternative set of procedures. These procedures are detailed in Section 7 of this document as Appendix 1.

4.19 **Stage 1 – Early Resolution**

- If the learner disagrees with the assessment decision, they must first discuss their reasons with the Trainer / Assessor concerned as soon as possible. Normally this will be immediately after they have received the assessment decision. If this is not convenient, the learner should arrange an appointment with the Trainer / Assessor within 5 working days of the assessment decision having been received.
- The Trainer / Assessor will consider the reasons and look again at the assessment in question. The Trainer / Assessor must then give the learner a response, in writing, within two working days. This will provide a clear explanation on the reasons for the original grading outcome and confirmation as to whether a new assessment decision will be granted or that the original grading decision will be upheld.

4.19 **Stage 2 – Formal Stage – Lead Internal Quality Assurer (Lead IQA)**

- If the learner is still dissatisfied with the decision, they must inform the Trainer / Assessor within five working days of the stage 1 decision that they wish to take their appeal to stage 2. The Trainer / Assessor must then inform the Lead IQA within 24 hours of receiving the stage 2 appeals request.
- The Trainer / Assessor must supply them with the original assessment record/feedback and the learner evidence where appropriate. They must also provide the written report from stage 1 of the appeal outlining the assessment decision(s) made.
- The Lead IQA will reconsider the assessment decision(s)
- The Lead IQA will then reply to the learner's appeal within 5 working days of receiving the appeal.

4.20 **Stage 3 – Appeals Panel**

- If the learner is still dissatisfied with the stage 2 outcome, they have the right to go to an appeals panel. They must inform the Lead IQA, who acted at stage 2, within five working days of the stage 2 decision. The Lead IQA must then supply their Dean of Faculty with all the documentation given to them by the Trainer / Assessor and include the written report from stage 2 of the appeal.
- Within ten working days of receiving the appeal, the Dean of Faculty must organise an appeals panel. The panel will consist of the Dean of Faculty, Subject Area Manager and a member of the Quality Team. If the Subject Area Manager is the Lead IQA at stage 2 of the appeal, a Subject Area Manager from a different faculty will be invited to attend.
- The learner may speak directly to the appeals panel or be represented by an advisor or make a written submission. The Trainer / Assessor who made the original decision may be asked to attend the appeals panel to answer questions.
- The appeals panel will then discuss the matter in private and reach a majority decision. The decision will be sent to the learner within five working days. Within the same timescale, the decision will also be sent to the Trainer / Assessor.

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

- The decision of the appeals panel is final. However, if the learner remains dissatisfied after the stage 3 outcome, the learner can take their appeal through the relevant awarding body appeals process.

Malpractice

- 4.21 Our Malpractice policy is fully compliant with the Joint Council for Qualifications (JCQ) Suspected Malpractice in Examinations and Assessments 2018-2019 policy. The JCQ policy and procedures will be followed when a suspected malpractice has been identified.

This policy highlights some of the key elements of the JCQ Suspected Malpractice in Examinations and Assessments 2018 -2019 policy. (See Section 6 – Related Legislation and Documents) to access the full policy.

Investigations carried out by the Principal / Appointed Investigator

- 4.21 Investigations into allegations of malpractice will be carried out by the Principal or delegated to another senior member of Weston College staff. The appointed investigator must deal with the investigation in accordance with the deadlines and requirements set by the awarding body.

If the investigation is delegated to another senior member of staff, the Principal retains overall responsibility for the investigation. In selecting a suitable senior member of staff the Principal must take all reasonable steps to avoid a conflict of interest.

The College Registrar is the designated Head of Centre and is likely to undertake most investigations when malpractice concerns students.

Where a conflict of interest may be seen to arise, investigations into suspected malpractice should not be delegated to the manager of the section, team or department involved in the suspected malpractice. In the event of any concerns regarding conflicts of interest or the suitability of the potential investigator, the Principal must contact the awarding body as soon as possible to discuss the matter.

- 4.22 Those responsible for conducting an investigation should seek evidence from which the full facts and circumstances of any alleged malpractice can be established. It should not be assumed that because an allegation has been made, it is true.
- 4.23 The person conducting the investigation should consider that both staff and candidates can be responsible for malpractice.
- 4.24 If Weston College is reporting the suspected malpractice, the awarding bodies recommend that, as a minimum, Weston College provides the accused individuals with a completed copy of the form or letter used to notify the awarding body of the malpractice.
- 4.25 Where the person conducting the investigation deems it necessary to interview a candidate or member of staff in connection with an alleged malpractice, the interviews must be conducted in accordance with Weston College's policy for conducting disciplinary enquiries. A full transcript of the interview should be made and kept. The interviewee should be asked to confirm the accuracy of the note.
- 4.26 The involvement of legal advisors is not necessary, at least where there is no allegation of criminal behaviour.

However, if any party wishes to be accompanied by a work colleague or trade union official, the other parties must be informed beforehand to give them the opportunity to be similarly supported. The person accompanying the interviewee should not take an active part in the interview, in particular he/she is not to answer questions on the interviewee's behalf. An awarding body will not be liable for any professional fees incurred.

The Principal is required to make available an appropriate venue for such interviews. Interviews may also be conducted over the telephone. Individuals involved may be requested to provide a written statement.

Rights of accused individuals

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

- 4.27 When, in the view of the investigator, there is sufficient evidence to implicate an individual in malpractice, that individual whether a candidate or a member of staff, accused of malpractice **must**:
- be informed (preferably in writing) of the allegation made against him or her
 - be advised that a copy of the JCQ publication Suspected Malpractice in Examinations and Assessments: Policies and Procedures can be found on the JCQ website – <http://www.jcq.org.uk/exams-office/malpractice>
 - know what evidence there is to support that allegation
 - know the possible consequences should malpractice be proven
 - have the opportunity to consider their response to the allegations (if required)
 - have an opportunity to submit a written statement
 - be informed that he/she will have the opportunity to read the submission and make an additional statement in response, should the case be put to an awarding body's Malpractice Committee
 - have an opportunity to seek advice (as necessary) and to provide a supplementary statement (if required)
 - be informed of the applicable appeals procedure (See Appeals in Section 4 points 4.16 – 4.19), should a decision be made against him or her
 - be informed of the possibility that information relating to a serious case of malpractice may be shared with other awarding bodies, the regulators and other appropriate authorities.
- 4.28 Responsibility for informing the accused individual rests with the Principal. In certain circumstances it may be necessary for the Principal to exercise discretion, in the light of all the circumstances of the case, as to the timing and the means by which an allegation of malpractice and the supporting evidence is presented to the individual(s) involved.
- 4.29 Full details of the awarding body's appeals procedures will be sent to the Principal and/or the accused involved in an appeal.

The Report

- 4.30 After investigating an allegation of candidate malpractice, or gathering evidence for a staff malpractice investigation, the Principal must submit a full written report of the case to the relevant awarding body.
- 4.31 The report should be accompanied by the following documentation, as appropriate:
- a statement of the facts, a detailed account of the circumstances of the alleged malpractice, and details of any investigations carried out by Weston College
 - the evidence relevant to the allegation, such as written statement(s) from the teachers, invigilator(s), assessor(s), internal verifier(s) or other staff who are involved
 - written statement(s) from the candidate(s)
 - any exculpatory evidence and/or mitigating factors
 - information about the Weston College's procedures for advising candidates and centre staff of the awarding bodies' regulations
 - seating plans showing the exact position of the candidates in the examination room
 - unauthorised material found in the examination room or photographs of material which cannot be submitted to an awarding body
 - any candidate work and any associated material (e.g. source material for coursework) which is relevant to the investigation.
 - Any teaching resources/material relevant to the investigation.
- 4.32 **Form JCQ/M1 or Form JCQ/M2b** should be used as the basis of the report. The forms are available from the JCQ website <http://www.jcq.org.uk/exams-office/malpractice>. Reports in letter format will be accepted providing the information given covers the same points as the form.
- 4.33 The awarding body will decide on the basis of the report, and any supporting documentation, whether there is evidence of malpractice and if any further investigation is required. The Principal will be informed accordingly.

Sanctions and Penalties for Weston College Staff Malpractice – Individual Staff

4.34 Where a member of Weston College staff or contractor has been found guilty of malpractice, an awarding body may impose the following sanctions or penalties:

- Written warning - Issue the member of staff with a written warning that if he/she commits malpractice within a set period of time, further specified sanctions will be applied.
- Training - Require the member of staff, as a condition of future involvement in its examinations and/or assessments, to undertake specific training or mentoring within a particular period of time and a review process at the end of the training.
- Special conditions - Impose special conditions on the future involvement in its examinations and/or assessments by the member of staff, whether this involves the internal assessment, the conduct, supervision or administration of its examinations and assessments.
- Suspension from involvement in delivery of examinations - Bar the member of staff from all involvement in the delivery or administration of its examinations and assessments for a set period of time. Other awarding bodies and the regulators may be informed when a suspension is imposed.

Sanctions and penalties for Weston College Staff Malpractice – The College

4.35 Awarding bodies may, at their discretion, impose the following sanctions against the college:

- Written warning - A letter to the head of centre advising of the breach and advising of the further action that may be taken (including the application of penalties and special conditions) should there be a recurrence of this breach, or subsequent breaches at the centre.
- Review and Report (Action Plans) - The head of centre will be required to review the centre's procedures for the conduct or administration of a particular examination/assessment, or all examinations/assessments in general.
The head of centre will additionally be required to report back to the awarding body on improvements implemented by a set date.
Alternatively, an action plan will be agreed between the awarding body and the centre, and will need to be implemented as a condition of continuing to accept entries or registrations from the centre.
- Approval of specific assessment tasks - The approval by the awarding body of specific assessment tasks in situations where these are normally left to the discretion of the centre.
- Additional monitoring or inspection - The awarding body may increase, at the centre's expense, the normal level of monitoring that takes place in relation to the qualification(s). Alternatively, the JCQ Centre Inspection Service may be notified of the breach of regulations and may randomly, without prior warning, inspect the centre over and above the normal schedule for inspections. (The JCQ Centre Inspection Service operates in relation to general qualifications and examined vocational qualifications.)
- Removal of Direct Claims Status - Direct claims status may be removed from the centre in which case all claims for certification must be authorised by the centre's external verifier. (This sanction only applies to NVQs and similarly assessed and verified qualifications.)
- Restrictions on Examination and Assessment Materials - For a specified period of time a centre will be provided with examination papers and assessment materials shortly before such papers and materials are scheduled to be used. These papers will be opened and distributed under the supervision of the awarding body officer (or appointed agent) responsible for the delivery. The centre might also be required to hand over to an awarding body officer (or appointed agent) the completed scripts and any relevant accompanying documentation, as opposed to using the normal script collection or despatch procedures. These measures may be applied for selected subjects or all subjects.
- Independent Invigilators - The appointment for a specified period of time, at the centre's expense, of independent invigilators to ensure the conduct of examinations and/or assessments is in accordance with the published regulations.
- Suspension of candidate registrations or entries - An awarding body may, for a period of time, or until a specific matter has been rectified, refuse to accept candidate entries or registrations from a centre. This may be applied for selected subjects/occupational areas or all subjects/occupational areas.
- Suspension of certification – An awarding body may, for a period of time, or until a specific matter has been rectified, refuse to issue certificates to candidates from a centre. (This only applies to NVQs and similar types of qualifications.)

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

- Withdrawal of approval for a specific qualification(s) - An awarding body may withdraw the approval of a centre to offer one or more qualifications issued by that awarding body.
- Withdrawal of centre recognition - The awarding body may withdraw recognition or approval for the centre. This means as a result that the centre will not be able to deliver or offer students the respective awarding body's qualifications. The regulators, awarding bodies and other appropriate authorities will be informed of this action. At the time of withdrawal of centre recognition, where determined by an awarding body, a centre will be informed of the earliest date at which it can re-apply for registration and any measures it will need to take prior to this application. Centres which have had centre recognition withdrawn should not assume that re-approval will be treated as a formality.

Sanctions and penalties applied against candidates

4.36 Awarding bodies may, at their discretion, impose the following sanctions against candidates:

- Warning - The candidate is issued with a warning that if he/she commits malpractice within a set period of time, further specified sanctions will be applied.
- Loss of all marks for a section - The candidate loses all the marks gained for a discrete section of the work. A section may be part of a component, or a single piece of non-examination assessment if this consists of several items.
- Loss of all marks for a component - The candidate loses all the marks gained for a component. A component is more often a feature of a linear qualification than a unitised qualification, and so this penalty can be regarded as an alternative to penalty 4. Some units also have components, in which case a level of penalty between numbers 2 and 4 is possible.
- Loss of all marks for a unit - The candidate loses all the marks gained for a unit. This penalty can only be applied to qualifications which are unitised. For linear qualifications, the option is penalty 3. This penalty usually allows the candidate to aggregate or request certification in that series, albeit with a reduced mark or grade.
- Disqualification from a unit - The candidate is disqualified from the unit. This penalty is only available if the qualification is unitised. For linear qualifications the option is penalty 7. The effect of this penalty is to prevent the candidate aggregating or requesting certification in that series, if the candidate has applied for it.
- Disqualification from all units in one or more qualifications - If circumstances justify, penalty 5 may be applied to other units taken during the same examination or assessment series. (Units which have been banked in previous examination series are retained.) This penalty is only available if the qualification is unitised. For linear qualifications the option is penalty 8.
- Disqualification from a whole qualification - The candidate is disqualified from the whole qualification taken in that series or academic year. This penalty can be applied to unitised qualifications only if the candidate has requested aggregation. Any units banked in a previous examination series are retained, but the units taken in the present series and the aggregation opportunity are lost. If a candidate has not requested aggregation the option is penalty 6. It may also be used with linear qualifications.
- Disqualification from all qualifications taken in that series - If circumstances justify, penalty 7 may be applied to other qualifications. This penalty can be applied to unitised qualifications only if the candidate has requested aggregation. Any units banked in a previous examination series are retained, but the units taken in the present series and the aggregation opportunity are lost. If a candidate has not requested aggregation the option is penalty 6. It may also be used with linear qualifications.
- Candidate debarment - The candidate is barred from entering for one or more examinations for a set period of time. This penalty is applied in conjunction with any of the other penalties above, (other than penalty 1 warning) if the circumstances warrant it.

Communicating Decisions

4.37 The Principal will be informed of decisions in writing as soon as possible after decisions are made by the awarding body.

It is the responsibility of the Principal to communicate the decision to the individuals concerned, and to pass on details of any sanctions/penalties and action in cases where this is indicated.

Decisions made under the college's staff and student disciplinary policies will be communicated as indicated under these policies.

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

- 4.38 The majority of malpractice cases are confidential between Weston College, the individual who engaged in the malpractice and the awarding body.

However, in cases of serious malpractice, where the threat to the integrity of the examination or assessment is such as to outweigh a duty of confidentiality, it will normally be necessary for information to be exchanged amongst:

- the regulators
- the awarding bodies; and
- other centres where the malpractice may affect the delivery of an awarding body's qualification

- 4.39 In accordance with the requirements of the *GCSE, GCE, Principal Learning and Project Code of Practice*, regulatory arrangements for the Qualifications and Credit Framework and the *General Conditions of Recognition*, the awarding body will report cases of Weston College staff malpractice to the regulators if the circumstances of the case are likely to meet the definition of an adverse effect.

This will include details of the action taken by the Principal, the governing body or the responsible employer. Other awarding bodies and other appropriate authorities will also be informed.

- 4.40 In serious cases of Weston College staff malpractice, the awarding bodies reserve the right to share information with professional bodies such as the Teaching Regulation Agency.

- 4.41 It is the responsibility of the Principal to inform the accused individual that the awarding body may share information in accordance with paragraphs 4.73, 4.74 and 4.75.

Appeals

- 4.42 The awarding bodies have established procedures for considering appeals against penalties arising from malpractice decisions.

The following individuals have a right to appeal against decisions of the awarding body's Malpractice Committee or officers acting on its behalf.

- The Principal, who may appeal against sanctions imposed on Weston College or on Weston College staff, as well as on behalf of candidates entered or registered through the centre
- Members of centre staff, or examining personnel contracted to a centre, who may appeal against sanctions imposed on them personally
- Private candidates
- Third parties who have been barred from examinations or assessments of the awarding body

- 4.43 Information on the process for submitting an appeal will be sent to Weston College if involved in a malpractice decision.

- 4.44 Appeals against decisions made under the college staff and student disciplinary policies can be made using the procedures outlined in these policies.

5 RESPONSIBILITIES

Compliance, monitoring and review

- 5.1 Any responsibilities pertaining to compliance, monitoring or reviewing are clearly stated within the Procedures Section of this policy (Section 4).

Reporting

- 5.2 Any additional reporting required is clearly stated within Procedures – Section 4 of this policy.

Records management

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

- 5.3 Staff must maintain all records relevant to administering this policy and procedure using the Weston College (ISO) recordkeeping system. This policy will be reviewed triennially or earlier as required to reflect awarding orgs. Changes to regulations.

6 RELATED LEGISLATION AND DOCUMENTS

JCQ – Joint Council for Qualifications – Suspected Malpractice in Examinations and Assessments 2018-2019. <https://www.jcq.org.uk/exams-office/malpractice/suspected-malpractice-in-examinations-and-assessments-2018-19>

Ofqual – Extraordinary Regulatory Framework: General Qualifications, COVID 19 Conditions and Requirements.

https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/891416/6626-1_Extraordinary_regulatory_framework_-_General_Qualifications_COVID-19_Conditions_and_Requirements.pdf

Ofqual – Extraordinary Regulatory Framework: Vocational and Technical Qualifications, COVID 19 Guidance.

https://assets.publishing.service.gov.uk/government/uploads/system/uploads/attachment_data/file/886933/20-6620-6_Extraordinary_regulatory_framework_-_Vocational_and_Technical_Qualifications_COVID-19_Guidance.pdf

Weston College Group Complaints Policy and Procedure (non-academic).

Weston College FE Anti-Bullying and Harassment Policy

Weston College Student Code of Conduct

Student Behaviour and Disciplinary Policy.

7 APPENDIX

APPENDIX 1 – APPEALS PROCEDURE DURING A TIME OF EXTRAORDINARY CIRCUMSTANCE

- 7.1 Our Appeals procedure during a time of extraordinary circumstance follows the guidance set out by Ofqual's Extraordinary Regulatory Framework for General Qualifications and the Extraordinary Regulatory Framework for Vocational and Technical Qualifications written during the COVID 19 outbreak.

This appendix highlights the key elements from the guidance. (See Section 6 – Related Legislation and Documents) to access the complete Ofqual Extraordinary Regulatory Frameworks for General Qualifications and for Vocational and Technical Qualifications.

- 7.2 During a time of extraordinary circumstance, an appeal to an awarding organisation can only be made on the basis –
- That the awarding organisation did not apply procedures consistently or that procedures were not followed properly and fairly,
 - That the awarding organisation used the wrong data in applying the process set out and did not calculate the result in compliance with any requirements, and having regard to any guidance, which may be published by Ofqual, or otherwise specified to the awarding organisation by Ofqual.
 - That a result generated by applying the process set out was incorrectly issued by the awarding organisation in respect of one or more Learners.
- 7.3 For the purposes of 7.2, bullet point 2, 'the wrong data' includes –
- Incorrect data provided by a Centre
 - A data set other than that specified in the requirements published by Ofqual
 - A data set specified in the requirements published by Ofqual into which errors have been introduced by the awarding organisation

ASSESSMENTS, INTERNAL VERIFICATION, COMPLAINTS, ACADEMIC APPEALS & MALPRACTICE POLICY AND PROCEDURES

This does not include a data set specified in the requirements published by Ofqual which contains errors or omissions that were not introduced by the awarding organisation.

7.4 Appeals Process

The Awarding organisation must ensure that they have the necessary arrangements in place for the centre to be able to request information on submitting an appeal. This information will support the process provided below that must be undertaken when a learner wishes to appeal their results during a time of extraordinary circumstance:

- If the learner disagrees with the outcome of their grade decisions, they must first discuss this with the Section Area Manager of their department. Each awarding organisation can specify their own time period during which an appeal must be requested. To ensure that an appeal can be made within the time period provided by the awarding organisation, it is important that the learner expresses their want to appeal to the Section Area Manager as soon as possible after their results have been received.
- The Section Area Manager must then refer to the appeals procedure for the relevant awarding organisation. Each awarding organisation will have in place their own process that will be followed during an appeals request.
- If the Section Area Manager agrees that the appeal request sits in line with the awarding organisation's grounds for appeal and is within the time period allocated by the awarding organisation, the Section Area Manager must then submit an appeal on behalf of the learner.
- The Section Area Manager must ensure that they have the learner's consent to go ahead with the appeal. A signed confirmation from the learner must be obtained prior to the appeal request being submitted to the awarding organisation.
- An awarding organisation may only agree to conduct an appeal after a payment of a fee.
- The awarding organisation may request other reasonable requirements for the making of a request for an appeal.
- Once the appeal has been submitted, the awarding organisation's appeals process will take precedence and the results of the appeal will be provided by the awarding organisation.